RIGHT TURN INVESTMENTS (PVT)LTD
versus
QUI ZHIQUANG

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 18 January 2026

Opposed application

N. C. Zhou, for the applicant
R. T. Mutero, for the respondent

CHITAPI J: The applicant is Right Turn Investments (Pvt) Limited, a duly registered company operating in Zimbabwe. The respondent Qui Zhiquang is a peregrine so described in the founding affidavit albeit his nationality was not stated. This is an application for rescission of a default judgment granted on 22 May 2024 in favour of the respondent against the applicant under case number HCH 1424/24. The default judgment was granted in summons for provisional sentence. The respondent opposed the application on various grounds including taking five preliminary points. three points were abandoned leaving two points. I ordered that the two points in limine should be argued and deposed of first.

The two remaining points were firstly that the application is incompetent in that there is no provision in the rules for a rescission of judgment of a default judgment granted in provisional summons proceedings. Secondly the answering affidavit raises new facts instead of it being an answer to matters raised in the opposing affidavit in consequence of which it should be struck off the record or at least the offending portions.

I note that the applicant did not attach the copy of the judgment where it seeks its rescission. The issue of whether the judgment ought to be attached or not was raised in the opposing affidavit by the respondent. The applicant responded that there was no rule which required it to attach the copy of the judgment to the rescission application. Further although the respondent purported that it had attached a copy of the judgment to the founding affidavit, no judgment was so attached. I would have engaged this issue at this stage, but I consider that

it should wait. This is so because counsel did not address it. Secondly in the light of the point which counsel argued on, the answer thereto will determine whether it is necessary to engage this issue.

The respondent argued that a default judgment procured in provisional sentence provisions precludes the defaulted defendant from applying for rescission of that judgment. Counsel for the respondent submitted that the defendant was only permitted to enter appearance to defend and not seek rescission. Counsel relied on the provisions of rule 14 (10) and (11) of the rules of this court. For convenience, I recite relevant sub rules of rule 14 thus:

> "(10) Any person against whom provisional sentence has been granted may enter appearance to defend the principal case but only if he or she shall have satisfied the amount of the judgment of provisional sentence and taxed costs or the plaintiff has issued a writ of execution against the defendant and executed against such property.
>
> (11) A defendant entitled to and wishing to defend the principal case, shall, within one month of the grant of provisional sentence, enter a notice of appearance to defend, in which event the summons shall stand as a summons in an ordinary action and the defendant shall file a plea within ten days after entry of appearance and thereafter the matter shall proceed as an ordinary action. Failing such appearance or such plea the provisional sentence shall ipso facto become a final judgment."

The applicant's counsel submitted that there was nothing contained in rule 14(10) and (11) to deny the applicant the remedy of rescission of default judgment and thus filing this application. The applicant submitted that whilst the quoted rule allows the applicant to enter appearance to defend, the rule did not disqualify the applicant from applying for rescission or the setting aside of a judgment granted in error, under rule 29(1)(a). It is under this rule that the application was made.

> "29. (1) The court or a judge may, in addition to any other powers it or he or she may have, on its own initiative or upon the application of any affected party, correct, rescind or vary— (a) an order or judgment erroneously sought or erroneously granted in the absence of any party affected thereby; or
>
> b……
>
> c……
>
> (2) Any party desiring any relief under this rule may make a court application on notice to all parties whose interests may be affected by any variation sought, within one month after becoming aware of the existence of the order or judgment.

> (3) The court or a judge shall not make any order correcting, rescinding or varying an order of judgment unless satisfied that all parties whose interests may be affected have notice of the order proposed."

Rules 27, 28 and 29 of the High Court Rules, 2021 deal with the setting aside of default judgments. In the case of rule 29, the court has further powers in that in addition to granting rescission, the court can correct or vary its judgment and can do so on its own initiative subject to parties affected or likely to be affected being given notice. The powers granted to the court in rule 29 are additional to any other powers which the court of judge may have.

Focusing on rule 29, there is nothing to indicate that any type of judgment is excluded. Therefore, a judgment obtained in proceedings for provisional sentence is subject to the rule and thus may be corrected, varied or rescinded if the requirements of the rule are met. As to whether the requirements are met is a merits argument. I do not deal with the substance of rule 27 and 28 since this application is not brought in terms thereof.

I also observe that rule 14(10) and (11) are directory or permissive of the defendant being permitted to defend a matter in which a provisional sentence judgment has been granted. Certain requirements as are mentioned therein must be met before appearance is entered. The rule does not differentiate between provisional sentence judgments granted in default or in the presence of the defendant. The said rule does not preclude the defendant who is in default and against whom a default judgment is entered from applying for rescission of the default judgment, its correction or variation in terms of rule 29(1)(a) as was done by the applicant.

Counsel for the respondent referred to my judgment in the case *Tetrad Investments Bank Limited* v *Bindura University of Science Education and Anor* HH 214/14. The judgment is attributed to myself. This is incorrect. It is a judgment by the late TAGU J. The dicta as quoted is not authority to say that a provisional sentence judgment granted in default of the defendant cannot be rescinded via rule 29(1)(a) by application of a defendant or affected party.

Consequently, the point in limine must fail. It has no merit. Costs should be in the cause since the matter continues. The following order is made.

IT IS ORDERED THAT;

1. The application is competent and properly before the court.
2. The Registrar shall reenlist the matter for continuation of hearing on the next available date.

3. Costs are in the cause.

CHITAPI J:……..

M.D Hungwe Attorneys at law – applicant's legal practitioners
C. Nhemwa and Associates- respondent's legal practitioners